

26CMCV00686 26CMCV00686

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-04

Motion: DEFENDANT CRCD APARTMENTS, LLC'S (1) DEMURRER TO PLAINTIFF'S COMPLAINT AND (2) MOTION TO STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT DATE: August 4, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00686 Hearing Date: August 4, 2026 Dept: E

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

DINISHA

ESKRIDGE, an individual,

Plaintiff,

vs.

CRCD APARTMENTS, LLC, a

California Limited Liability Company; and Does 1 Through 50, Inclusive,

Defendants.

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CASE

NO: 26CMCV00686

ORDER RE: DEFENDANT CRCD APARTMENTS, LLC'S

(1) DEMURRER TO PLAINTIFF'S COMPLAINT AND (2) MOTION TO STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT

DATE: August 4, 2026

TIME:

8:30 A.M.

DEPT.: E

Moving Party: Defendant

CRCD Apartments, LLC

Responding Party: Dinisha

Eskridge

Notice: Ok

Tentative Ruling: Defendants'

Demurrer is SUSTAINED IN PART and DENIED IN PART.

Defendant's

Motion to Strike is DENIED.

I.

BACKGROUND

This is a

habitability, premises liability and nuisance action. Plaintiff Dinisha Eskridge alleges that she leases the residential real property located at 11216 S. Figueroa St., Unit # 6, Los Angeles, CA 90061 (the "Property") from Defendant CRCD Apartments, LLC ("CRCD").

Plaintiff alleges that the Property suffers from a severe bedbug infestation and that CRCD knew of the infestation but concealed the infestation and failed to warn Plaintiff prior to Plaintiff leasing the Property. Plaintiff claims CRCD's failure to maintain the Property in a habitable condition caused her to suffer physical and mental injuries.

On April 10, 2026, Plaintiff filed this action against CRCD and Does 1 through 50, inclusive, alleging causes of action for: (1) Breach of Implied Warranty of Habitability (Violation of Civil Code §1941.1; Health & Safety Code 17920.3); (2) Breach of Implied Warranty of Habitability (Violation of Civil Code §1942.4); (3) Negligence - Premises Liability/Failure to Warn – Negligence Per Se; (4) Private Nuisance; (5) Public Nuisance; (6) Breach of Contract; (7) Breach of Covenant of Quiet Enjoyment; (8) Intentional Infliction of Emotional Distress; (9) Fraudulent Concealment; (10) Unfair Business Practices (Violation of Business & Professions Code §17200, et seq.).

On

May 19, 2026, CRCD filed the instant Demurrer to Plaintiff's Complaint and Motion to Strike Portions of Plaintiff's Complaint.

On

July 21, 2026, Plaintiff filed her Oppositions to CRCD's Demurrer and Motion to Strike.

On July 28, 2026, CRCD filed its Replies.

II.

ANALYSIS

A.

Legal
Standard

1.

Demurrer

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. § 430.10(e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

A party may also demur to a complaint on the grounds that it "is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. [Citation.]" (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or

law.” (Simonyan v. Nationwide Insurance Company of America (2022)
78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

2.

Motion to
Strike

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436(a), (b); Stafford v. Schultz (1954) 42 Cal.2d 767, 782.)

The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc. § 437.) Accordingly, the Court does not consider any extrinsic evidence, including that contained in affidavits, declarations, or deposition transcripts concurrently filed with the moving or opposing papers. (See Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.)

In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: “[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Clauson v. Superior Court (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255.)

B.

Meet and
Confer

Before filing a demurrer,
the demurring party is required to meet and confer “in person, by telephone, or
by video conference with the party who filed the pleading that is subject to
the demurrer for the purposes of determining whether an agreement can be
reached through a filing of an amended pleading that would resolve the
objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

Counsel for Defendant,
Herbert Hayden (“Hayden”), attests to sending a meet and confer letter to
Plaintiff’s counsel by email and mail. (Hayden Decl., ¶¶ 4-6, Exh A.) Hayden
also attests to inviting Plaintiff’s counsel to meet and confer by telephone or
videoconference. (Id., at ¶ 7.) Counsel attests that Plaintiff’s counsel
has not responded to the meet and confer letter or contacted Defendant’s
counsel. (Id., at ¶ 8.)

The Court finds that CRCD
has not satisfied the statutory meet and confer requirement. However, the Court’s determination that the
meet and confer process was insufficient is not grounds to overrule or sustain
CRCD’s Demurrer. (Code Civ. Proc. §
430.41(a)(4).) Accordingly the Court proceeds to analyze
CRCD’s Demurrer on its merits. The
parties are cautioned, however, of their obligation to comply with statutory
requirements, including meet and confer requirements.

C.

Discussion

1.

Demurrer

CRCD

demurs to Plaintiff’s Second, Third, Fifth, Eighth, Ninth, and Tenth Causes of
Action on the grounds that each fails to state facts sufficient to constitute a
cause of action and/or is uncertain.

i.

Second

Cause of Action for Breach of Implied Warranty of Habitability (Violation of Civil Code § 1942.4)

Section

1942.4(a)[1]

provides that "[a] landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit . . . if all of the following conditions exist prior to the landlord's demand or notice: (1) [t]he dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling[;] (2) [a] public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions[;] (3) [t]he conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause . . . [; and] (4) [t]he conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2." (Civ. Code § 1942.4(a).)

CRCD argues Plaintiff's Complaint

does not plead all elements of a Section 1942.4(a) cause of action because Plaintiff fails to allege that any public officer or employee inspected the property and issued a written notice to CRCD and also fails to allege and that thirty-five days have passed since the issuance of any such written notice.

In opposition, Plaintiff argues that the

Complaint alleges that she filed a complaint with the County of Los Angeles Health Department and notified Defendant, but the bed bug infestation was not resolved for an extended period, which would exceed 35 days. Plaintiff thus argues that she has alleged each element of Civil Code §1941.1 and information such as the name of the public officer will require a discovery process for Plaintiff to obtain that information.

Plaintiff

alleges she has complained multiple times to Defendant about the uninhabitable conditions of the subject unit since 2022 and continuing through 2026, that she has filed a complaint with the County of Los Angeles Health Department and notified Defendant to abate the bed bug infestation, but the infestation was not resolved in the subject unit for “an extended period.” (Complaint ¶¶ 70, 72, 74.) Plaintiff’s allegations are insufficient.

First, Plaintiff’s allegation that she “filed a complaint with County of Los Angeles Health Department [“LAHD”] and notified Defendants to abate the bed bug infestation” (see Complaint, ¶ 74) does not suffice to allege the specific statutory elements set forth in Section 1942.4; to state a cause of action, Plaintiff must allege that a “public employee or officer [] notified [CRCD] in writing of [its] obligation to abate the nuisance or repair the substandard conditions.” (Civ. Code § 1942.4(a)(2).) Nowhere in her Complaint does Plaintiff allege that a public officer or employee notified CRCD in writing of its obligations to abate the alleged nuisance after inspecting the premises. Plaintiff’s contention that “the detail[s] of the written notice, name of the public officer is within the Defendant’s control and possession, which will require a discovery process for Plaintiff to obtain said information” (see Opp., p. 24-26) is both an overstatement and a misstatement.

Plaintiff overstates what she is required to plead. Plaintiff is not required to plead the specific name of the public officer or the details of the written notice. Plaintiff is simply required to plead that there was an inspection and CRCD received written notice, which pleading may be made on information and belief.[2]

And that such information is solely within CRCD’s purview appears to be a misstatement; California law requires notice be given to the landlord with a copy to the tenants in a residential building when there has been a violation affecting the tenants’ health and safety. (See Health & Safety Code § 17980(d)(1)(B)(“[T]enants in a residential building shall be provided copies [of an] order of the code enforcement agency issued after inspection of the premises declaring the dwelling to be in violation of a provision described in subdivision (a)[.]” which subdivision includes maintenance of a building in violation of an order or notice for which a landlord is normally given reasonable time to correct).)

As to timing, the Court finds that Plaintiff’s allegations are insufficient as well.

Section 1942.4 requires that the conditions existed and were not abated for 35 days “beyond the date of service of the [written notice for a public officer

or employee notifying CRCDD of its obligation to abate the alleged nuisance].”
(Civ. Code § 1942.4(a)(3).) While the
Court may read Plaintiff’s allegation that the alleged condition existed for an
“extended period” and infer that the alleged condition existed for years, any
such inference does not suffice to address the pleading requirement here. The only relevant time period is 35 days
after CRCDD received written notice to abate from a public agency. Without an allegation that the relevant time
period has been established or an alleged date that CRCDD received any written
notice, Plaintiff’s pleadings are insufficient.

CRCDD’s
Demurrer to Plaintiff’s Second Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

ii.

Third
Cause of Action for Negligence – Premises Liability/Failure to Warn –
Negligence Per Se

CRCDD
demurs to Plaintiff’s third cause of action on the ground that negligence per se
is an evidentiary doctrine, not substantive law, and does not itself create a
private right of action. CRCDD further argues Plaintiff’s third cause of action
is uncertain because it cannot meaningfully respond to a claim that conflates
an evidentiary doctrine with substantive theories of liability.

In
opposition, Plaintiff argues that the third cause of action for negligence
arises from premises liability, failure to warn, and negligence per se, and Plaintiff
argues the Complaint adequately pleads negligence.

The
fundamental elements of negligence are (1) duty, (2) breach, (3) causation, and
(4) injury. (Thomas v. Steinberg (2012) 206 Cal.App.4th 654,
662.) Negligence per se is
not a cause of action; it is a theory that affects the burden of proof in
an underlying negligence action. (See California Service Station
etc. Assn. v. American Home Assurance Co. (1998) 62 Cal.App.4th
1166, 1178 [“[a]n underlying claim of negligence must be viable before
the [negligence per se] presumption ... can be
employed”].) Where a plaintiff claims a defendant is
negligent per se, he or she simply invokes

a pre-established statutory standard of conduct. (Ramirez v. Plough, Inc. (1993) 6 Cal.4th 539, 547. Put differently, the plaintiff “‘borrows’ statutes to prove duty of care and standard of care.” (Johnson v. Honeywell Internat., Inc. (2009) 179 Cal.App.4th 549, 558.)

CRCD's

demurrer to Plaintiff's negligence per se claim is SUSTAINED. It is not a distinct cause of action. To the extent CRCD's demurrer asserts that

Plaintiff's Third Cause of Action is uncertain because it “comingles”

negligence and premises liability, the Court does not find CRCD's argument

persuasive. The elements of a cause of action for premises liability are

the same as those for negligence: duty, breach, causation, and damages. (Ortega

v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205; see Civ. Code § 1714(a).) Both theories of liability are

negligence-based and both have the same elements; the Court finds no

uncertainty.

In

accordance with the above, CRCD's Demurrer to Plaintiff's the Third Cause of

Action is OVERRULED as to Negligence/Premises Liability and SUSTAINED as to

Negligence Per Se.

iii.

Fifth

Cause of Action for Public Nuisance

“A public nuisance

is one which affects at the same time an entire community or neighborhood, or

any considerable number of persons, although the extent of the annoyance of

damage inflicted upon individuals may be unequal.” (Civ. Code §

3480; see Birke v. Oakwood Worldwide (2009) 169

Cal.App.4th 1540, 1548.) “A private person may maintain an action

for a public nuisance, if it is specially injurious to

himself, but not otherwise.” (Civ. Code § 3493.)

“In determining whether

something is a public nuisance, the focus must be upon whether an entire

neighborhood or community or at least a considerable number of persons are

affected in the manner and by the factors that make the thing a nuisance under Civil

Code section 3479. [Citations.] In other words, a private nuisance does not

become a public nuisance merely because the public may be said to be affected in some tangential manner rather than specifically in the manner set forth in Civil Code section 3479." (Beck Development Co. v. Southern Pacific Transportation Co. (1996) 44 Cal.App.4th 1160, 1209.)

CRCD demurs to Plaintiff's Fifth

Cause of Action on the grounds that Plaintiff fails to allege a public nuisance because the Complaint only alleges that the bed bugs were present in Plaintiff's unit and another unit but it does not allege that the bed bugs infested neighboring residences or otherwise affected the surrounding community. CRCD also argues that Plaintiff has not alleged she suffered a different kind of harm, only that she suffered a different degree of harm.

Plaintiff

argues in opposition that her Fifth Cause of Action is viable because she alleges to have suffered a different type of harm (financial harm) in addition to a similar harm suffered by the public at large and the public at large in this case includes all guests that visit the subject property that can transfer the bed bugs to the rest of the community at large.

As

to any effect on the public, in her Fifth Cause of Action Plaintiff alleges "[t]he uninhabitable conditions (bed bug infestations) at the Subject Property and Subject Unit, as described herein constitutes a public nuisance . . . in that these defective and uninhabitable conditions (bed bug infestations) are injurious to the health and safety of Plaintiff and the public at large, indecent and offenses to the senses of Plaintiff and the public at large . . ." (Complaint, ¶ 102.) The nuisance has a deleterious effect on the public at large while at the same time specially injuring Plaintiff . . ." (Id., ¶ 103.) These allegations are conclusory and speculative; Plaintiff alleges nothing more than that the bedbugs at issue here are a public nuisance (a legal conclusion) and they have a deleterious effect on the public (a factual conclusion and speculation). The Court is not required to accept as true conclusions of fact or law when ruling upon a demurrer. (See Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078 (A judge does not assume the truth of pleaded deductions, contentions, or conclusions of law or fact).) And Plaintiff's argument made in opposition that all guests that visit the subject property could transfer the bed bugs from the subject property to the rest of the community at large (see Opp, p. 5:16-19) is not an allegation made in the

Complaint. Plaintiff does not adequately allege a public nuisance.

As to damages, a “plaintiff cannot recover damages for a public nuisance, so far as the injury is to the public only, but if he has suffered damage peculiar to himself”. (Grigsby v. Clear Lake Water Works Co. (1870) 40 Cal. 396, 406.) This idea has been consistently repeated throughout California case law. (See Frost v. Los Angeles (1919) 181 Cal. 22, 24-25 (“To entitle a party to sue to enjoin a public nuisance he must allege and prove facts showing that it causes special injury to himself in person or property, and of a character different in kind from that suffered by the general public”); see also County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal. App. 4th 292, 307 fn. 6 (“no mention of a “special injury” to the City, which is necessary for a plaintiff to recover damages in a public nuisance action).) Here, Plaintiff alleges she “suffered harm that was different from the type of harm suffered by the public at large in that Plaintiff has suffered economic harm (paying to reside at the bed bug-infested [sic] property).” (Complaint, ¶ 103.) Plaintiff’s rent, however, is a contractual obligation resulting from her leasing the Property. (See Complaint, ¶ 17.) While Plaintiff’s may be entitled to recover a portion of her rent paid subject to a determination of whether the Property was uninhabitable and for how long, it remains that Plaintiff’s rent is not an economic damage caused by the bedbugs. As currently pleaded, the danger to the public (if any) caused by a bed bug infestation is the same injury complained of by Plaintiff, i.e., exposure to bed bugs, including being bitten, and suffering financial harm for disposing infested items and paying rent despite a bed bug infestation.

CRCD’s

Demurrer to Plaintiff’s Fifth Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

iv.

Eighth

Cause of Action for Intentional Infliction of Emotional Distress

The essential elements

for intentional infliction of emotional

distress ("IIED") are: (1) outrageous conduct; (2) an intent to cause or a reckless disregard of the possibility of causing emotional distress; (3) severe or extreme emotional distress; and (4) actual and proximate cause of the emotional distress by the outrageous conduct. (Symonds v. Mercury Sav. & Loan Ass'n (1990) 225 Cal.App.3d 1458,1468.) Outrageous conduct is conduct that "exceed[s] all bounds usually tolerated by decent society, of a nature which is especially calculated to cause, and does cause, mental distress of a very serious kind." (Ochoa v. Superior Court (1985) 39 Cal.3d 159, 166, fn. 5.)

CRCD demurs to Plaintiff's Eighth

Cause of Action on the ground that Plaintiff fails to allege "extreme and outrageous" conduct, citing Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903 ("Stoiber") for its contention that, to state a cause of action for intentional infliction of emotional distress in a habitability situation, there must be additional abusive conduct by the landlord in the form of actual knowledge and active concealment. CRCD argues that the Complaint only alleges "garden variety negligence in property management" in its allegations that Defendant knew of bed bugs, was repeatedly notified, and failed to abate, but the Complaint does not allege intentional harassment or deliberate exposure to known danger and therefore the Complaint fails to allege sufficient "extreme and outrageous" conduct.

Also

citing Stoiber and additionally citing Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057 ("Burnett"), Plaintiff argues Defendant's malicious failure to correct the alleged bedbug infestation amounts suffices as a basis for her cause of action for intentional infliction of emotional distress. Plaintiff argues that a landlord's knowing, intentional and willful failure to correct a defective condition may constitute "extreme and outrageous" conduct sufficient to sustain a cause of action for intentional infliction of emotional distress and contends that the specificity of her allegations suffices to allege such conduct by CDCR.

Plaintiff

alleges that she moved into the Premises in November 2021 and noticed bedbugs in approximately 2022. (Complaint, ¶ 17.) Albeit on information and belief, Plaintiff alleges that CRCD was actually and constructively aware of the bedbug issue prior to Plaintiff moving in. (Id., ¶ 22, 131.) In 2022, 2023, 2024, 2025 and 2026 Plaintiff

alleges she notified CRCD's managers and managing agents of the problem, but CRCD has failed to remedy the problem. (Id., ¶¶ 17-19, 131.) In addition to notifying CRCD, Plaintiff further filed a complaint with LAHD. (Id., ¶ 74.) Despite Plaintiff's complaints to CRCD and LAHD and despite the condition of the unit, Plaintiff has continued paying rent and CRCD has continued accepting rent. (Id., ¶¶ 24, 71.) And despite Plaintiffs' years-long pattern of complaints, the bedbug issue continues and affects not only Plaintiff's unit but a second unit as well (at least). (Id., ¶¶ 134, 135.) Construing Plaintiff's allegations as true, as the Court must at this procedural juncture, the facts as alleged are that CRCD knew of and concealed a severe bedbug infestation, allowed Plaintiff to move into the Property (which was infested with bedbugs), and has since refused to remedy the bedbug problem but has continued to demand and collect rent. Although Plaintiff's description of CRCD's actions as "intentional and willful" are conclusory, it can be inferred from the four-year span of the allegations and the allegations that the bedbug issue affects more than one unit (both if taken as true) that CRCD was undoubtedly aware of the problem and chose not to act. On these facts it cannot be said that such conduct is not extreme and outrageous as a matter of law such that CRCD's demurrer should be sustained. Whether these circumstances amount to "extreme and outrageous" conduct is a factual issue for a determination by the trier of fact rather than at the demurrer stage.

CRCD's
Demurrer to Plaintiff's Eighth Cause of Action is OVERRULED.

v.
Ninth
Cause of Action for Fraudulent Concealment

CRCD
demurs to Plaintiff's Eighth Cause of Action, arguing that Plaintiff fails to plead fraudulent concealment with the heightened specificity required when pleading fraud against a corporation. In opposition, Plaintiff argues that the Complaint sufficiently pleads fraud based on concealment because the facts lie more within Defendant's knowledge than Plaintiff's.

In
general, the facts constituting fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal

construction” of the pleadings will not be invoked. (*Lazar v. Superior Court* (1995) 12 Cal.4th 631, 645 (“*Lazar*”).) And to properly allege fraud against a corporation, a plaintiff must plead the names of the person allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157 (“*Tarmann*”).)¿

However, the specificity requirement is “relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts.” (*Quelimane Co. v. Steward Title Guaranty Co.* (1998) 19 Cal.4th 26, 27.) Further, the pleading rule for corporations is inapplicable to a claim of fraudulent concealment. (*Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384 (“How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?”).)¿

The Supreme Court’s recent decision in *Rattagan* re-affirms and clarifies this rule; although it held that the same specificity pleading standard for affirmative fraud applies to fraudulent concealment claims, it clarified that “the focus of inquiry shifts to the unique elements of the claim. [Citations.]” (*Rattagan*, *supra*, 17 Cal.5th at p. 43.) Thus, in a concealment claim based on a defendant’s duty to disclose arising from the defendant’s exclusive knowledge, the complaint must specifically allege “(1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission.” (*Id.* at p. 43-44.)

Here,

Plaintiff alleges: (1) the content of the omitted facts (that there was a bedbug infestation at the unit rented by Plaintiff)(see Complaint, ¶ 146); (2) CRCD’s awareness of the materiality of the omitted fact (that the bedbug infestation “posed a danger to [Plaintiff’s] physical health and well-being”)(*Id.*, ¶ 145); (3) the inaccessibility of those facts to Plaintiff (*Id.*, ¶ 146, 148 (Plaintiff did not know of the infestation and could not have discovered it); and (5) justifiable and actual reliance (Plaintiff rented the unit)(*Id.*, ¶ 17.) Plaintiff’s

allegations are sufficient to maintain her cause of action for fraudulent concealment.

CRCD's

Demurrer to Plaintiff's Ninth Cause of Action for Fraudulent Concealment is OVERRULED.

vi.

Tenth

Cause of Action for Violation of Business & Professions Code § 17200[3]

CRCD

demurs to Plaintiff's Tenth Cause of Action on the ground that the Complaint includes by reference all preceding allegations, including the demand for compensatory, general, special and punitive damages which are not recoverable via a Business & Professions Code § 17200 cause of action.

CRCD further argue that "[t]he Prayer for Relief, which Plaintiff seeks on "all causes of action," demands compensatory damages, general and special damages, and punitive damages" again which are not recoverable via the instant cause of action. (Mot., p. 13:23-25.)

Plaintiff

argues she seeks restitution for the damages she had to pay out of pocket as a result of the bed bug infestation and for rent paid to Defendant during the time the property was uninhabitable due to the bed bug infestation. Plaintiff argues the Complaint alleges the acts and omissions that show Defendants engaged in unfair competition within the meaning of Business and Professions Code §17200 thus entitled she to injunctive and restitution relief as provided by California Business and Professions Code §17203.

To state a

cause of action for Unfair Business Practices, a plaintiff must allege (1) Defendant has engaged in more than one unlawful, unfair, or fraudulent transaction, including unfair, deceptive, untrue or misleading advertising; (2) Plaintiff's right to restitution, if any. Damages are not recoverable; (3) Plaintiff's right to injunctive relief, if any. (Bus. & Prof. Code § 17200 et seq.; Dean Witter Reynolds, Inc. v. Superior Court (1989) 211 Cal.App.3d 758, 773-774.) "By proscribing 'any unlawful' business practice, '[Business and Professions Code] section 17200 "borrows" violations of other laws and treats them as unlawful practices' that the [UCL] makes

independently actionable.” (Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 180 (“Cel-Tech”).) “An unlawful business practice under [Business and Professions Code] section 17200 is ‘an act or practice, committed pursuant to business activity, that is at the same time forbidden by law. [Citation.]’ ” (Progressive West Ins. Co. v. Superior Court (2005) 135 Cal.App.4th 263, 287.) “Virtually any law—federal, state or local—can serve as a predicate for an action under Business and Professions Code section 17200. [Citation.]” (Ticconi v. Blue Shield of California Life & Health Ins. Co. (2008) 160 Cal.App.4th 528, 539.)

A landlord's violation of housing codes can be the basis of a Business & Professions Code § 17200 cause of action. (See e.g. City & County of S.F. v. Sainez (2000) 77 Cal.App.4th 1302, 1308 (Code violations constituted unfair business practices).)

Here,
Plaintiff alleges Defendants were unjustly enriched at Plaintiff's expense and Plaintiff is entitled to restitution, and Plaintiff has alleged Defendant's violation of housing codes. (Complaint ¶¶ 158, 160.) Plaintiff has sufficiently pleaded her Tenth Cause of Action. That
Plaintiff's Complaint is worded such that it would appear she seeks damages not awardable pursuant to her cause of action for violation of Business & Professions Code § 17200 does not render it subject to demurrer for failure to state a cause of action. Plaintiff
states a cause of action, including damages which are recoverable.

CRD's
Demurrer is OVERRULED as to Plaintiff's Tenth Cause of Action.

2.
Motion to
Strike

i.
Punitive Damages

CRCD moves to strike Plaintiff's allegations seeking
punitive damages, arguing that the allegations are not supported by specific facts establishing oppression, fraud or malice or the corporate ratification element required by Civil Code § 3294(b). In
essence, CRCD seeks to strike all allegations that it acted with malice or ill

intent because said allegations are conclusory.

Though conclusory allegations can be stricken, they will generally not be stricken when sufficiently supported by factual allegations in the complaint. (See, e.g., *Perkins v. Sup. Ct.* (1981) 117 CA3d 1, 6.)

Additionally, the line between ultimate facts and conclusions of law is often unclear and the language sought to be stricken must be read not in isolation but in the context of the entire Complaint. (Id.) Here, the Court has overruled CRCD's demurrer to causes of action which allow punitive damages; accordingly, the Court finds that some factual basis is alleged to support Plaintiff's allegations of intentional and malicious conduct.

As to the corporate ratification allegations, CRCD moves to strike on the ground Plaintiff does not allege that its "advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice [was] on the part of an officer, director, or managing agent." (See Civ. Code § 3294(b).) First, Civil Code § 3294(b) does not set forth the allegations Plaintiff must make to state a cause of action seeking punitive damages against a corporation, it sets forth what Plaintiff must prove in order to recover punitive damages against a corporation after "it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Id., §3294(a).) Accordingly, Plaintiff's Complaint is drawn in conformity with the laws of California as to the causes of action for which CRCD's Demurrers have been overruled.

CRCD's Motion to Strike Plaintiff's punitive damages allegations and prayer is DENIED.

ii.

Private Attorney General Allegations

CRCD moves to strike Plaintiff's allegations and prayer seeking attorney fees pursuant to Code of Civil Procedure § 1021.5, arguing that such fees are awardable only by post-judgment motion, are not a substantive cause of action or item of pleaded relief, and do not apply to an individual habitability action. Plaintiff argues in opposition that attorney fees may be awarded pursuant to Code of Civil Procedure § 1021.5 because Plaintiff has pleaded a significant benefit to the public, the necessity and financial burden of private enforcement here makes an award of fees appropriate, and justice requires that any fees not be paid out of Plaintiff's recovery.

First, unsupported attorneys' fees allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) And "[t]here is no requirement that the intent to seek attorney fees under section 1021.5 must be pleaded in the underlying action. [Citation.] Such fees are not part of the underlying cause of action, but are incidents to the cause and are properly awarded after entry of a ... judgment" (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497 ("Snatchko")(quoting *Washburn v. City of Berkeley* (1987) 195 Cal.App.3d 578, 583).) Indeed, because there is no pleading requirement, at least one Court of Appeal has held that it is error to strike attorney fees sought pursuant to Code of Civil Procedure § 1021.5. (See *Snatchko*, supra, 187 Cal.App.4th at p. 497 ("As there was no requirement they be pled at all, the trial court erred in striking Snatchko's prayer for attorney fees based on a failure to adequately plead their basis, and Snatchko's failure to reallege his request for fees in his first amended complaint does not waive or forfeit his ability to seek them at the conclusion of this case").)

Accordingly, the Court determines that – even were it inclined to issue such an order - an order striking Plaintiff's Code of Civil Procedure § 1021.5 allegations would be an exercise in futility; such claims need not be pleaded, may be sought even if not pleaded, and may be sought after having been stricken.

The Court declines to make a futile order. CRCD's arguments as to whether Code of Civil Procedure § 1021.5 fees are warranted in this matter are more properly addressed when and if a motion is made, at which point the Court will be more equipped to determine if Plaintiff is the successful party and if "an important right affecting the public interest" was vindicated via the instant action, along with the other criteria set forth in Code of Civil Procedure § 1021.5.

CRCD's Motion to Strike Plaintiff's Private Attorney General allegations and prayer is DENIED.

iii.

Injunctive Relief

CRCD moves to strike Plaintiff's prayer for injunctive relief, arguing that "Plaintiff has not pled the elements necessary to support equitable injunctive relief." (Mot., p. 5:5.)

The Court has overruled CRCD's Demurrer to Plaintiff's Tenth Cause of Action for Violation of Business & Professions Code § 17200, which cause of action has as a remedy injunctive relief. Accordingly, the Court finds that, contrary to CRCD's assertion, Plaintiff has pleaded the necessary elements to support injunctive relief.

CRCD's Motion to Strike Plaintiff's prayer for injunctive relief is DENIED.

III.

CONCLUSION

CRCD's Demurrers to Plaintiff's Eighth, Ninth and Tenth Causes of Action are OVERRULED.

CRCD's Demurrer to Plaintiff's Third Cause of Action is SUSTAINED IN PART and DENIED IN PART.

CRCD's Demurrers to Plaintiff's Second and Fifth Causes of Action are SUSTAINED WITH LEAVE TO AMEND.

Where leave to amend has been granted, Plaintiff's First Amended Complaint is ordered to be filed and served no later than September 4, 2026.

CRCD's Motion to Strike is DENIED.

[1]

Unless specified, Section references are to the Civil Code.

[2] Allegations of ultimate facts made on information and belief are generally adequate for matters of which the Defendant is presumed to have superior knowledge. (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551; *Foster v. Sexton* (2021) 61 Cal.App.4th 998, 1018; *Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 1077, 1106; *Aghaji v. Bank of America, N.A.* (2016) 247 Cal.App.4th 1110, 1120; *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159.)

[3] Business & Professions Code §

17200 establishes three varieties of unfair competition - unlawful, unfair, and fraudulent business practices, each independently actionable. (See *People ex rel Bill Lockyer v. Fremont Life Ins. Co.* (2002) 104 Cal.App.4th 508.) Although Plaintiff has titled her Tenth Cause of Action "Violation of Business & Professions Code § 17200," Plaintiff only alleges unlawful business practices and thus the Court proceeds with its analysis only as to the sufficiency of any alleged unlawful business practices.